

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Steven George Xiarhos

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to racing on public ways and penalties for unlawful motor vehicle competitions.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>10/8/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>10/11/2025</i>
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>10/11/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>10/11/2025</i>
<i>Michael J. Soter</i>	<i>8th Worcester</i>	<i>10/11/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>10/11/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>10/11/2025</i>
<i>Kelly A. Dooner</i>	<i>Third Bristol and Plymouth</i>	<i>10/14/2025</i>
<i>Donald H. Wong</i>	<i>9th Essex</i>	<i>10/21/2025</i>

HOUSE No.

By Representative Xiarhos of Barnstable, a petition (subject to Joint Rule 12) of Steven George Xiarhos and others for legislation to establish penalties for racing on public ways and unlawful motor vehicle competitions. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to racing on public ways and penalties for unlawful motor vehicle competitions.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 90 of the General Laws, as appearing in the 2024 Official Edition,
2 is hereby amended by inserting after section 24X the following new section:-

3 SECTION 24Y. Racing on public ways; penalties; impoundment; forfeiture

4 (a) As used in this section, the following words shall, unless the context clearly requires
5 otherwise, have the following meanings:

6 “Race”, the operation of one or more motor vehicles in competition, arising from a
7 challenge to demonstrate superiority of a motor vehicle or driver, either by prior arrangement or
8 in immediate response to another driver, in which the operator attempts to outgain, outdistance,
9 or prevent another motor vehicle from passing, or to arrive at a given destination ahead of
10 another vehicle.

“Drag race”, the operation of two or more motor vehicles from a point side-by-side at accelerating speeds in a competitive attempt to outdistance each other, or over a common selected course for the purpose of comparing relative speed or power of acceleration.

“Spectator”, any person who knowingly attends or views a drag race or race prohibited under this section, when such presence is the result of an affirmative choice to attend or participate.

“Public way”, any highway, roadway, bridge, tunnel, parking lot open to the public, or any area maintained by a political subdivision of the Commonwealth for vehicular travel.

(b) No person shall:

(1) Operate a motor vehicle, including a motorcycle, in any race, speed competition, drag race, acceleration contest, test of physical endurance, or exhibition of speed or acceleration on any public way; (2) Coordinate, facilitate, or collect funds for any such event; (3) Knowingly ride as a passenger in any such race or contest; or (4) Intentionally obstruct or slow the movement of traffic for the purpose of conducting or observing any such race or exhibition.

(c) Any person who violates subsection (b) shall be punished by:

(1) For a first offense, by imprisonment in a house of correction for not more than 2½ years or by a fine of not less than \$500 and not more than \$1,000, or both, and the registrar shall suspend such person’s driver’s license or right to operate for 1 year. (2) For a second offense within five years, by imprisonment in a house of correction for not more than 2½ years or by a fine of not less than \$1,000 and not more than \$3,000, or both, and the registrar shall suspend such person’s driver’s license or right to operate for 2 years. (3) For a third or subsequent offense

within five years, by imprisonment in a house of correction for not more than 2½ years or by a fine of not less than \$2,000 and not more than \$5,000, or both, and the registrar shall suspend such person's driver's license or right to operate for 4 years.

(d) Any person who violates this section as a spectator shall be punished by a fine of not more than \$250 for a first offense and not more than \$500 for a second or subsequent offense.

(e) A law enforcement officer having probable cause to believe a person has violated subsection (b) may arrest such person without a warrant and may cause the motor vehicle operated by such person to be impounded for up to 30 business days.

All fees and costs associated with towing and storage shall be borne by the registered owner of the vehicle unless the court orders dismissal of the charge.

(f) Any motor vehicle used in violation of this section by a person who, within the previous five years, has been convicted of a violation under this section may be subject to forfeiture as provided in Chapter 276, Section 3, if the person so convicted is the owner of the vehicle.

(g) This section shall not apply to:

(1) Licensed or duly authorized racetracks or drag strips; or (2) Areas designated by municipal or state authorities specifically for organized, permitted events involving motor vehicle exhibitions.

SECTION 2. The registrar of motor vehicles, in consultation with the secretary of public safety and security, shall promulgate regulations necessary to implement the provisions of this

52 act, including uniform reporting procedures and notice to offenders regarding license suspension
53 and impoundment.